

Performance Marketing Service Agreement

(Direct Business Clients — B2B)

TEMPLATE — NOT LEGAL ADVICE. This is a working draft prepared for Digital Marketing Remote. Have it reviewed by a qualified German/EU lawyer before use. Fill every [bracketed] field before signing.

This Agreement is made between:

Provider: Digital Marketing Remote, sole proprietorship (Einzelunternehmen) Owner: Mohammad Danyal Shahzad Bahria Town, Phase 8, Lahore 54000, Pakistan Email: support@digitalmarketingremote.com ("Provider", "we", "us")

and

Client: [Legal company name], [legal form] [Registered address] · Register/VAT-ID: [____]
Represented by: [name, role] ("Client", "you")

Effective date: [date]

1. Status of the Client (B2B only)

The Client confirms that it enters into this Agreement **exclusively as an entrepreneur (Unternehmer) within the meaning of § 14 BGB**, for purposes of its commercial or independent professional activity. This is a business-to-business agreement. **Consumer protection provisions — including the statutory right of withdrawal (Widerrufsrecht) — do not apply.**

2. Services

The Provider delivers the following performance-marketing services (the "**Services**"), as selected in the order/Annex A: - Google Ads management (strategy, campaign build, ongoing optimisation, search-term management) - Meta Ads management (Facebook & Instagram — setup, creative briefing, scaling, A/B testing) - Conversion tracking & analytics setup (GTM, GA4, pixels) - Monthly performance reporting

The exact scope, platforms, package tier and monthly fee are set out in **Annex A (Order Form)**.

3. Advertising budget (media spend)

The **advertising budget is separate from the Provider's fee** and is **funded directly by the Client**. The Client pays the advertising platforms (Google, Meta) directly via its own payment method on its own accounts; **100% of the advertising budget flows into the Client's campaigns**. The Provider does not advance, fund, or take any margin on media spend. The Client is solely responsible for the level of its advertising budget.

4. Accounts & ownership

All advertising, tracking and analytics accounts are owned by, and registered to, the **Client**. The Provider works **on the basis of access rights only** and never takes ownership of accounts, data or assets. On termination, the Provider promptly returns/relinquishes all access; the Client retains full control of all accounts, data and creative assets.

5. Fees, term & termination

- **Fee:** the monthly management fee stated in Annex A. Fees are **individually agreed per engagement** based on the scope discussed and may differ from any list or website prices. **No setup fee and no upfront cost** unless agreed otherwise in Annex A.
- **Billing:** the monthly fee is **payable in advance, before the start of each service month**. Fees are **net** and, once a service month has begun, **non-refundable** (the Performance Guarantee in Clause 6 is the sole exception).
- **Late payment / suspension:** if a payment is overdue, the Provider may **pause or suspend the Services** until payment is received, and charge **default interest at the statutory rate (§ 288 BGB)**. Suspension does not extend the Performance Guarantee or reduce fees.
- **Fee changes:** the Provider may adjust fees for **future** service months with **[30]** days' notice in text form; the Client may terminate before the change takes effect. Any change in scope is quoted and agreed separately.
- **Term:** monthly — **no minimum term and no fixed-term commitment**.
- **Termination:** either party may terminate with **[14]** **days' notice to the end of a calendar month** in text form. The **Provider may terminate with immediate effect** for non-payment, material breach, or where the Client's activity violates platform policies or applicable law. Termination for good cause remains unaffected.

6. Performance Guarantee

If the **KPIs jointly defined in writing in Annex A** are not met in the **first full month** of active campaign management, the Provider **waives its management fee for the second month** (one free month of management). This guarantee: - is the Provider's **own waived fee** — there is **no cash payout** and no refund of advertising budget; - applies only where the Client has provided timely access, assets, a reasonable advertising budget and required approvals; - does **not** apply to results outside the Provider's control (e.g. budget changes, account suspensions by the platform, Client-side website/checkout issues).

7. No guarantee of specific results

Beyond the Performance Guarantee in Clause 6, the Provider does **not** warrant any specific advertising outcome (e.g. a particular number of leads, sales, revenue, ranking or ROAS). Advertising results depend on factors outside the Provider's control (platform algorithms, auction dynamics, market conditions, the Client's offer, pricing, website and budget). The Provider owes a **diligent, professional best-effort service**, not a specific commercial result.

8. Client cooperation, responsibility & indemnity

The Client will provide, in good time: account access, brand assets, required approvals, accurate information, a functioning website/landing page, and a reasonable advertising budget. Delays caused by missing cooperation

extend deadlines accordingly and may affect the Performance Guarantee.

The Client is **solely responsible** for its products, offers, prices, website, and for the **content, claims and legality of its advertisements**, and for compliance with the advertising platforms' policies and applicable law. The Client **indemnifies and holds the Provider harmless** against all third-party claims, fines, platform actions and costs (including reasonable legal fees) arising from the Client's products, content, instructions, or any breach of platform policy or law.

The Provider may **decline or stop** work that concerns prohibited, illegal or high-risk activities, or that would breach platform policies — without liability.

9. Confidentiality

Each party keeps the other's confidential information secret and uses it only to perform this Agreement. This obligation survives termination for [3] years. (A separate Mutual NDA may apply.)

10. Data protection

Where the Provider processes personal data on the Client's behalf (e.g. conversion/analytics data), the parties conclude a separate **Data Processing Agreement (AVV) under Art. 28 GDPR** (see Document 04). The AVV prevails for all data-processing matters.

11. Taxes (reverse charge)

All fees are **net amounts**. Services are provided under the **reverse-charge procedure (§ 13b UStG)**; no German VAT is charged and the **Client (as a business) accounts for VAT** in its own country. The Provider's Pakistani tax number (NTN) is available on request.

12. Liability

- The Provider is liable without limitation for intent and gross negligence, and for injury to life, body or health.
- For **slight negligence**, the Provider is liable only for breach of an essential contractual obligation (Kardinalpflicht), limited to the **foreseeable, typical damage**, and capped at the **total fees paid by the Client in the [3] months preceding the event**.
- The Provider is **not liable** for indirect or consequential damage, lost profit, or for advertising budget spent, platform decisions (account bans, disapprovals), or third-party platform outages.
- The Provider is **not liable for delays or failures caused by events beyond its reasonable control** (force majeure), including platform outages or platform account actions; affected obligations are suspended for the duration.

13. Final provisions

- This Agreement is governed by the **laws of the Federal Republic of Germany**, excluding the UN CISG.
 - Place of jurisdiction for all disputes is [a German court venue to be agreed, e.g. Berlin], to the extent a place of jurisdiction can be validly agreed between businesses.
 - Changes must be in text form. If a provision is invalid, the remainder stays in force.
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Provider — Digital Marketing Remote Name: _____ Date: _ **Signature:** _____

Client — [Company] Name: _____ Date: _ **Signature:** _____

Annex A — Order Form

Item	Detail
Package / tier	[e.g. Google Ads – €499/mo]
Platforms	[Google Ads / Meta Ads / both]
Monthly fee (net)	[€__]
Advertising budget (Client-funded)	[€__ /mo, paid by Client to platform]
Jointly defined KPIs (for Clause 6)	[e.g. cost per lead ≤ €__, min __ leads/mo]
Reporting cadence	Monthly
Notice period	[14] days to month-end